



Global Acquisitions

U.S. DEPARTMENT *of* STATE

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Overseas Post: U.S. Embassy Seoul
Requiring Activity	Gardening Services

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Post requests approval to procure additional gardening services via contract modification in the Yongsan Embassy Housing (YEH) Area at U.S. Embassy, Seoul from Handuk Iron-Mine & Construction Co., Ltd. on a sole-source basis, under current gardening contract 19KS7023C0001.

The additional work is grass mowing, pruning, leaf raking, and snow removal on an additional approx. 1,132,759 sq. ft (24.92 acres) and will be performed in accordance with the existing contract's Performance Work Statement (PWS) for gardening services described in Section 3.

This additional work is required due to a change in classification of the expanded areas within the YEH housing compound to common-use areas, obligating the Embassy to maintain those areas. Further, the current system presents grave safety hazards where individuals with limited lawn equipment experience operate gas-powered lawnmowers and store gasoline in their residences. This creates fire, explosion, and health hazards and mishaps results in serious legal and financial liabilities for the government. Fire risk is especially of concern in Seoul as the dry weather makes vegetation such as grass, leaves and trees, highly ignitable and Embassy Seoul has experienced several recent fires, including 2 incidents involving lawnmowers, plus 2 residences burned out in full.

Contract Number: 19KS7023C0001

Contract Modification Number: 19KS7023C0001-P0003

Original Contract Price: approx. \$2,709,386 (3,552,005,400 KRW)

Estimated Value of Modification: approx. \$675,335.84 (1,022,397,600 KRW)

The original contract was awarded by A/GA through full and open competition on July 31, 2023.

This is a firm fixed price definitive contract.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The additional requirement is for gardening services in the expanded areas of the YEH Area, located at 6-ga, Yongsan-dong, Yongsan-gu, Seoul:

Location	Work Items	Expanded Area and Frequencies
3A Housing— Expanded Areas, 6-ga, Yongsan- dong, Yongsan- gu, Seoul	Gardening services for the service areas as shown in Revised Attachment 2/Map, which were not included in the original Attachment 2/Map. - Mow the grass and remove visible grass clippings: - Pruning: - Leaf raking: - Snow removal:	Approximately 1,132,759 sq. ft (24.92 acres) - Grass mowing: April ~ August (14 times/yr) - Pruning shrub: April ~ October (7 times/yr) - Leaf raking: October ~ December (7 times/yr) - Snow removal: December ~ February (16 times/yr)

Post is currently exercising Option Year 2 of the contract. The estimated value of the entire contract for the period of performance (Base + 4 option years) is approx. \$3,390,984.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.103 and substantiated by the following:

☒ FAR 6.103-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

The original gardening contract was awarded to Handuk Iron-Mine & Construction Co., Ltd. through full and open competition using a Lowest Price Technically Acceptable (LPTA) source selection process.

The contractor has detailed knowledge of the YEH site conditions, access requirements, safety requirements and operational constraints and has demonstrated satisfactory performance during the execution of the current contract.

Because the primary additional work involves grass care, pruning, and related tasks within the same areas already maintained by Handuk, the Government's best interest is to retain a single responsible contractor for all gardening services in the compound to avoid conflicting work schedules, and ambiguity or overlap over work areas, tasks, damage and safety incidents.

YEH is a limited access area that requires strict security control from both the U.S. Embassy and the Department of War's United States Forces Korea (USFK). Handuk Iron-Mine & Construction Co., Ltd. and its personnel already possess all required security clearances, badges, and access approvals needed to perform work at the YEH compound from both the Embassy and USFK. Using the same contractor avoids significant delays, administrative burdens and costs associated with processing new clearances and badges, and reduces security risks by limited the number of contractors with access to these secure areas.

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.201 APPLIES

Post awarded the incumbent gardening contract through full and open competition among qualified gardening contractors, with review and approval by A/GA. The Government evaluated proposals using LPTA and selected Handuk Iron-Mine & Construction Co., Ltd. as the lowest-priced, technically acceptable offeror.

The following offerors participated in the original competition:

Name & SAM UEI#	Total Price with Options (KRW)	Technically Acceptable	SAM	W-14
Woorim Landscaping & Supplies Co., Ltd. (UEI: K66NNVPXK1Y6)	2,574,961,486 (USD1,964,120)	Capable of being acceptable	YES	YES
TS Comprehensive technology (UEI: P6HHFM6N1XZ7)	2,691,084,000 (USD2,052,696)	Capable of being acceptable	YES	YES
Kumgang Jogyeong Co., Ltd. (UEI: UMYUHA4378H3)	2,916,845,000 (USD2,224,901)	Capable of being acceptable	YES	YES
Shinil Construction Co., Ltd. (UEI: XMTLNM12U7T7)	3,183,414,177 (USD2,428,234)	Capable of being acceptable	YES	YES
Inyoung Jokyoung Construction Co., Ltd. (UEI: XJL4JNQYWRM7)	3,232,520,000 (USD2,465,690)	Capable of being acceptable	YES	YES
Handuk Iron-mine & Construction Co., Ltd. (UEI: VJCYQRLL15U5)	3,552,005,400 (USD2,709,386)	Technically Acceptable	YES	YES
Sanha Eco & D Co., Ltd. (UEI: LL9WA1U2DLS5)	3,860,491,320 (USD2,944,692)	Capable of being acceptable	YES	YES
Baeksang Construction Co., Ltd. (UEI: VE8NCZKLN58)	4,619,717,340 (USD3,523,812)	Technically Unacceptable	YES	YES
Incircle Management Inc. (UEI: XCQTGV25JBH5)	\$3,875,851.20	Technically Unacceptable	YES	YES

FAR 5.202(2) applies.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer has determined the anticipated price to the Government of the services covered by this J&A is fair and reasonable based on the original solicitation and award process using LPTA, market research for the same type of gardening services, and evaluation of the IGCE developed by the requesting office. By signing the justification, the Contracting Officer makes a determination that the additional price to the Government is expected to be fair and reasonable.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

Market research was conducted as part of the development of the requiring office's Independent Government Cost Estimate (IGCE). This research relied on local market price data, information from current similar gardening works, and practical cost information available to Post. The IGCE supported evaluation of offeror prices under the original competition and informs the assessment of reasonableness for this modification.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

The original contract was awarded through full and open competition, with review and approval by A/GA.

YEH is a controlled diplomatic residential area with limited access points within a larger compound controlled by USFK. It has constrained work spaces, and safety-sensitive tasks (tree work, snow removal, machinery operation). The additional work must be integrated with ongoing contract performance in the same locations. Using multiple contractors in the same confined areas at the same time would create avoidable safety, coordination, and access control risks, and duplicative efforts.

Work in and around YEH and associated facilities requires personnel with appropriate security vetting, Embassy badges, and USFK-related access approvals. Handuk already meets these requirements, and its personnel are familiar with Embassy and USFK procedures. Onboarding a new contractor for this incremental work would require duplicative clearance and badging processes, delay performance, increase administrative burden, and expand the pool of individuals with access to controlled areas without corresponding benefit.

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

To date, no other sources have written to express an interest in this contract modification. See also Section 6.

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

For the reasons set forth in this document, US Embassy Seoul does not intend to compete this modification to the existing gardening services contract. Should post elect not to exercise future option years and/or at the expiration of the current contract, post intends to exercise full and open competition for future gardening services requirements.

SECTION 12. CERTIFICATIONS

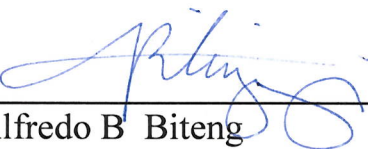
All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

TECHNICAL AND REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

SIGNATURE:



Alfredo B. Biteng

Facility Manager

06 APR 2026

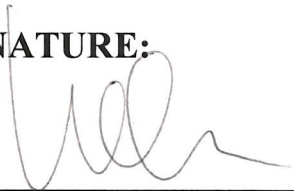
Date

CERTIFICATIONS (Continued)

CONTRACTING OFFICER CERTIFICATION (FAR 6.104-1(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:



Helen No

Contracting Officer

06 APR 2026

Date

Per Competition Advocate, under FAR Overhaul, CO has approval authority for justifications under \$900,000